

1. PARTIES

This Jet Ski Rental Agreement ("Agreement") is entered into between Veralase LLC d/b/a NH Jet Fun ("Owner") and the Renter identified above ("Renter"). By signing below or completing an online booking, Renter agrees to all terms and conditions set forth herein. Rental jet ski ("Craft") is outlined in electronic reservation.

2. RENTAL PERIOD & DELIVERY

- Rentals are weekly, Saturday to Saturday. Delivery occurs every Saturday by 5:00 PM. Return is due the following Saturday by 10:00 AM.
- Owner will deliver and retrieve the watercraft to/from Renter's confirmed NH lake location within Owner's published delivery service area (central and southern New Hampshire, south of Squam Lake). Delivery location must be confirmed at least 48 hours before the rental start date by contacting bookings@nhjetfun.com or (978) 273-3562.
- Renter is responsible for having a suitable launch area or dock available at the delivery address.

3. FEES & PAYMENT

- A non-refundable 15% reservation deposit is charged at the time of booking and is applied toward the total rental fee.
- A refundable security deposit of \$900.00 is collected at checkout via Stripe and held on Renter's card. It will be released within five (5) business days following satisfactory return of the watercraft.
- The remaining rental balance is due in full at the time of delivery.
- The security deposit may be applied, in whole or in part, toward any damages, excessive cleaning fees, late return penalties, or other charges incurred during the rental period.

4. CANCELLATION POLICY

- The 15% reservation deposit is non-refundable under all circumstances.
- Cancellations made 14 or more days before the rental start date: deposit is forfeited; no further charges apply.
- Cancellations made fewer than 14 days before the rental start date: the full rental fee is forfeited.
- Owner reserves the right to cancel or reschedule rentals due to unsafe weather conditions, mechanical issues, or other circumstances beyond Owner's control. In such cases, Renter will receive a full refund or the option to reschedule.

5. RENTER ELIGIBILITY & REQUIREMENTS

- Renter must be at least 21 years of age and possess a valid government-issued photo ID.
- All operators must be at least 16 years of age. Operators aged 16–17 must be accompanied by a supervising adult aged 21 or older at all times while operating the watercraft.
- Renter must hold a valid New Hampshire Boating Safety Certificate or its equivalent from another state, OR must complete a NH-approved boating safety course prior to operation. A copy must be provided to Owner upon request.
- Renter must have a valid driver's license or state-issued ID.
- Renter must not operate the watercraft under the influence of alcohol, drugs, or any substance that may impair judgment or reaction time.

6. PERMITTED USE

- The watercraft may only be operated on New Hampshire lakes and waterways by eligible operators listed on this Agreement.
- Only the Renter and persons expressly authorized in writing by Owner may operate the watercraft.
- The maximum passenger capacity for the Sea-Doo Wake 155 HP (SK-01) is 3 riders. The maximum passenger capacity for the Sea-Doo GTR 230 HP (SK-02) is 3 riders. Exceeding these limits is strictly prohibited.
- Towing activities (tubing, wakeboarding, waterskiing, etc.) are permitted on SK-01 with prior written authorization from Owner. Towing on SK-02 requires prior written authorization. Contact Owner before booking if towing is a priority.
- The watercraft shall not be used for racing, stunts, jumping wakes aggressively, or any activity that may result in excessive wear or damage.
- Operation in restricted areas, within swimming zones, or in violation of any state or local waterway rules is prohibited.

7. RENTER'S RESPONSIBILITIES

- Renter is responsible for the watercraft from the time of delivery until the time of return.
- Renter must inspect the watercraft upon delivery and immediately report any pre-existing damage to Owner. Failure to report pre-existing damage in writing at delivery may result in Renter being held liable for such damage.
- Renter must return the watercraft in the same condition as received, with a full fuel tank. If returned with less than a full tank, Renter will be charged market rate plus a \$20.00 per gallon surcharge for the fuel shortfall, deducted from the security deposit.

- Renter is responsible for any damage, loss, or theft of the watercraft, trailer, accessories, or safety equipment during the rental period.
- All passengers must wear a properly fitted U.S. Coast Guard-approved personal flotation device (PFD/life jacket) at all times while on or near the watercraft. PFDs are provided by Owner.
- Renter must comply with all applicable NH state laws, RSA 270-D (Personal Watercraft), and all local waterway regulations.

8. PROHIBITED USES

- Operating the watercraft at night or in conditions of restricted visibility.
- Subletting, lending, or transferring the watercraft to any person not listed on this Agreement.
- Operating outside the state of New Hampshire.
- Operating in salt water or tidal waterways.
- Operating in a negligent, reckless, or dangerous manner.
- Transporting the watercraft by vehicle without Owner's express written permission.

9. DAMAGE & LIABILITY

Renter accepts full financial responsibility for any and all damage to the watercraft, trailer, and accessories caused during the rental period, including but not limited to collision damage, hull damage, engine damage caused by running aground or ingesting debris, damage from improper trailering, and damage from overloading.

In the event of damage, Renter agrees to:

- Immediately notify Owner by phone at (978) 273-3562.
- Cooperate fully with Owner's assessment and documentation of the damage.
- Pay all repair costs, towing costs, and any loss-of-rental income resulting from the damage.

Renter's personal watercraft or homeowner's insurance may cover some or all of these costs. Renter is encouraged to verify coverage before the rental period begins. Owner's insurance does not cover renter-caused damage or renter liability.

10. WAIVER OF LIABILITY & ASSUMPTION OF RISK

RENTER ACKNOWLEDGES THAT THE USE OF A PERSONAL WATERCRAFT (JET SKI) INVOLVES INHERENT RISKS, INCLUDING BUT NOT LIMITED TO BODILY INJURY, DEATH, AND PROPERTY DAMAGE. RENTER VOLUNTARILY ASSUMES ALL SUCH RISKS AND AGREES THAT OWNER, VERALASE LLC, AND THEIR OFFICERS, EMPLOYEES, AND AGENTS SHALL NOT BE LIABLE FOR ANY INJURY, LOSS, OR DAMAGE ARISING FROM RENTER'S USE OF THE WATERCRAFT, EXCEPT WHERE SUCH LIABILITY ARISES FROM OWNER'S GROSS NEGLIGENCE OR WILLFUL MISCONDUCT.

11. INDEMNIFICATION

Renter agrees to indemnify, defend, and hold harmless Veralase LLC d/b/a NH Jet Fun, its officers, members, employees, and agents from and against any and all claims, losses, liabilities, damages, costs, and expenses (including reasonable attorneys' fees) arising out of or related to Renter's use of the watercraft, Renter's breach of this Agreement, or any violation of applicable law by Renter or any authorized operator.

12. ACCIDENTS & INCIDENTS

- Renter must immediately report any accident, collision, or incident involving the watercraft to Owner by calling (978) 273-3562.
- Renter must cooperate with Owner and, if required, with law enforcement and insurance investigators.
- Renter must not admit fault or liability to any third party without Owner's prior written consent.
- NH law requires that boating accidents resulting in death, disappearance, injury requiring medical attention beyond first aid, or property damage exceeding \$2,000 be reported to NH Fish & Game within 48 hours.

13. LATE RETURN

The watercraft must be returned (available for pickup) by 10:00 AM on the last Saturday of the rental period. Late returns will be charged at a rate of \$75.00 per hour or any portion thereof, deducted from the security deposit. If the security deposit is insufficient to cover the late return fee, Renter will be invoiced for the balance.

Fuel: The watercraft must be returned with a full fuel tank. If the fuel tank is not full upon return, Renter will be charged the current market rate per gallon plus a \$20.00 per gallon surcharge for any fuel shortfall, deducted from the security deposit.

14. GOVERNING LAW, DISPUTE RESOLUTION & BINDING ARBITRATION

This Agreement shall be governed by and construed in accordance with the laws of the State of New Hampshire, without regard to its conflict-of-law provisions. **BINDING ARBITRATION — PLEASE READ CAREFULLY.** BY SIGNING THIS AGREEMENT, RENTER AGREES THAT ANY AND ALL DISPUTES, CLAIMS, OR CONTROVERSIES ARISING OUT OF OR RELATING TO THIS AGREEMENT, THE RENTAL OF THE WATERCRAFT, OR ANY INJURY, LOSS, OR DAMAGE CONNECTED THEREWITH — INCLUDING DISPUTES

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REGARDING THE INTERPRETATION, VALIDITY, OR ENFORCEABILITY OF THIS AGREEMENT — SHALL BE RESOLVED EXCLUSIVELY BY FINAL AND BINDING ARBITRATION, AND NOT BY LAWSUIT OR COURT PROCEEDING, EXCEPT AS SPECIFICALLY PROVIDED BELOW. Arbitration Administrator. Arbitration shall be conducted by the following arbitration administrator, in order of priority:

- First: Nutfield Mediation, LLC, Derry, New Hampshire (nutfieldmediation.com), if available and willing to administer the matter;
- Second: Any other mutually agreed-upon licensed arbitration or mediation provider located in New Hampshire, as agreed in writing by both parties within fourteen (14) days of notice of the dispute; or
- Third: If the parties cannot agree on an administrator within fourteen (14) days, Owner shall select a licensed arbitration or mediation provider located in New Hampshire, and that selection shall be final and binding.

Arbitration Rules & Procedures. The arbitration shall be conducted in Rockingham County, New Hampshire (or by remote means if mutually agreed), under the commercial arbitration rules of the selected administrator, except as modified herein. The arbitrator shall be a neutral, licensed professional. Each party shall bear its own attorneys' fees and costs unless the arbitrator determines that a claim or defense was frivolous or brought in bad faith, in which case the arbitrator may award fees and costs to the prevailing party. Scope of Arbitration. All disputes within the scope of this clause shall be arbitrated on an individual basis. Class arbitrations and class actions are expressly waived. The arbitrator shall have authority to award any remedy available at law or in equity, except that the arbitrator may not award punitive or exemplary damages. Exceptions. Notwithstanding the foregoing, either party may seek emergency injunctive or equitable relief from a court of competent jurisdiction in Rockingham County, New Hampshire, solely to prevent irreparable harm pending the outcome of arbitration. Owner may also pursue collection of undisputed amounts owed in Small Claims Court. Severability of Arbitration Clause. If any portion of this arbitration agreement is found unenforceable, the remaining provisions shall continue in full force. If the class action waiver is found unenforceable, the entire arbitration agreement shall be null and void, and the dispute shall be resolved by a court of competent jurisdiction in Rockingham County, New Hampshire.

15. ENTIRE AGREEMENT & SEVERABILITY

This Agreement constitutes the entire agreement between the parties with respect to the rental of the watercraft and supersedes all prior negotiations, representations, or agreements. If any provision of this Agreement is found to be unenforceable, the remaining provisions shall continue in full force and effect.

RENTER ACKNOWLEDGMENT & SIGNATURE

By signing below, Renter acknowledges that they have read, understand, and agree to all terms and conditions of this Agreement, and that they have received a copy of this Agreement.

_____ Renter Signature	_____ Date
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_____ Renter Printed Name	_____ Date
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FOR NH JET FUN / VERALASE LLC:

_____ Authorized Signature	_____ Date
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_____ Printed Name & Title	_____ Date
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